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California social media addiction bill drops parent lawsuits

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SACRAMENTO, Calif. (AP) — A first-of-its-kind proposal in the California Legislature aimed at holding social media companies responsible for harming children who have become addicted to their products would no longer let parents sue popular platforms like Instagram and TikTok.

The revised proposal would still make social media companies liable for damages of up to $250,000 per violation for using features they know can cause children to become addicted. But it would only let prosecutors, not parents, file the lawsuits against social media companies. The legislation was amended last month, CalMatters reported Thursday.

The bill's author, Republican Assemblymember Jordan Cunningham, said he made the change to make sure the bill had enough votes to pass in the state Senate, where he said a number of lawmakers were “nervous about creating new types of lawsuits.”

“They get afraid it will open the floodgates to frivolous claims,” Cunningham said. “They seem to be more comfortable letting this be handled by the public prosecutors, who already end up taking the lead on this kind of consumer protection type stuff.”

While the revised bill might win more votes in the state Legislature, it hasn't won over social media companies, many of which are based in California and remain opposed. TechNet, a group of technology CEOs and senior executives, says it is nearly impossible to separate social media content — words, photos and videos uploaded by people — from the features companies use to deliver that content, including things like push notifications, newsfeed and the ability to scroll endlessly through posts.

“I think that violates our First Amendment rights and the editorial discretion that we have,” said Dylan Hoffman, TechNet's executive director for California and the Southwest. “It doesn’t make sense to identify the feature when it’s the content underlying it that may cause the problem.”

Hoffman said social media companies have introduced lots of new features to address what he called the “a really difficult and complex issue" of children's use of social media. Many platforms let parents set time limits for their children or disable certain features.

“There is a lot of innovation in this space to make sure that parents and kids are able to better control their social media usage,” Hoffman said.

The bill would exempt social media companies from these lawsuits if they conduct quarterly audits of their features and remove any harmful products within 30 days of learning they cause children to become addicted.

Hoffman says that would offer companies little protection because advocates claim nearly everything about a social media app or website is addictive, including the newsfeed and algorithms suggesting content.

He said companies would have to dismantle their entire websites within 30 days to avoid liability — something Hoffman said would be “impossible.”

Cunningham scoffs at that argument, saying the legislation would give social media companies an incentive to police themselves to avoid penalties. He said most other products are covered under consumer protection laws that allow people to sue companies for selling products they know to be dangerous.

“We just haven't extended it to social media platforms yet because they are new, and we didn’t really know that they were conducting this social experiment on the brains of our kids,” Cunningham said. “They don’t have any incentive to change.”

The bill is one of several proposals in the Legislature this year targeting social media companies.

A bill by Democratic Assemblymember Jesse Gabriel would require social media companies to publicly disclose their policies for removing problem content and give detailed accounts for how and when they removed it.

A bill by Sen. Tom Umberg would let Californians who were targeted in a violent social media post seek a court order to have the post removed.

And a bill by Assemblymember Buffy Wicks would require companies to meet certain standards when marketing to children online.

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